

IN THE MATTER OF PRESTIGE DEFAULT SERVICES, LLC
Case No. CU25-08421

Petition for the Distribution of Surplus Funds following Foreclosure

TENTATIVE RULING:

Parties to appear.

The petition in this matter was filed on September 12, 2025. No explanation is provided by trustee as to the significant delay in depositing funds that are the subject of the interpleader.

Case Management Conference One was heard on March 24, 2026. A number of possible claimants were present in the courtroom. Prestige Default Services LLC failed to appear. At the hearing the court confirmed that the surplus funds had not been deposited with the court. No ex parte request to deposit funds had been received by the court from trustee. The court issued an Order to Show Cause to Petitioner.

On April 7, 2026, the court received a deposit of \$62,083.39. This receipt triggered the clerk's office to provide written notice to identified claimants at the addresses provided by Petitioner.

Written notice to several claimants has been returned as undeliverable. Given Petitioner's unexplained delay, the court is concerned that information regarding claimants contact information became stale. Petitioner should update this search to determine accurate addresses for:

Bank of America
Anacorita Asprer
Lulian P Asprer

Court records reflect that the estate of Trifon Patolot Asprer has an active case pending in Solano County Superior Court (PR-25-00642). Albert Phillip Asprer has been designated the executor. He is represented by attorney Jeanne Serrano, Esq. Petitioner is to provide notice.

Additionally, the court will expect an explanation from trustee as to the delay and confirmation that the funds were in an interest bearing account during this unexplained 6 month delay. As the amount deposited is the same as the amount in the Petition, it appears that additional interest has not been properly credited.

The court understood that one or more claimant might be petitioning for the appointment of a successor trustee as the prior trustee Jocelyn Sharabiti is alleged to have abandoned the role. The trust is the proper recipient of any surplus funds after satisfaction of all liens.

If no proceedings are initiated to appoint a successor trustee, the court will be compelled to hold a hearing and claimants will be required to file written claims to the funds no later than 15 days prior to the hearing. Any person with notice of the duty to file a claim who fails to file a timely claim establishing entitlement to the surplus proceeds will be deemed to have abandoned his or her claim.

MICHAEL MERLONGHI v. MARY DELBROCCO
Case No. CU26-00553

Demurrer

TENTATIVE RULING

Defendant MARY DELBROCCO's demurrer directed to Plaintiff MICHAEL MERLONGHI's complaint filed on January 21, 2026, is overruled as moot. Plaintiff filed a first amended complaint ("1AC") on February 26, 2026, prior to the filing of the demurrer or any responsive pleading. (Code Civ. Proc., §§ 472, 1005, subd. (b).) It appears from the court's file the 1AC was personally served on Defendant and Plaintiff's counsel on March 2, 2026 prior to the filing of the demurrer on March 11, 2026.

A timely filed amended pleading supersedes the original pleading and so moots a challenge to the now-defunct original pleading. (*Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.* (2004) 122 Cal.App.4th 1049, 1054.)

The court confirms the case management conference scheduled for August 18, 2026. Updated case management conference statements shall be filed using Judicial Council Form CM 110 at least 15 days prior to the hearing.

FELIPE CRUZ HERNANDEZ v. HARPREET SINGH
Case No. FCS057281

Petitions to Approve Minor's Compromise

TENTATIVE RULING:

No appearances are necessary.

The petition to approve the minor's compromise is approved. The court appreciates that the compromise was the result of a binding arbitration in which multiple parties appeared and resolved competing claims towards the same pot of insurance proceeds. The petition is solely to approve the costs and fees from the funds that were awarded in binding arbitration to the minor.

The court will process the lodged order forthwith.
